

detainer action involving Defendant

Plaintiff claims that in the trial between the same parties for unlawful detainer matter in Case No. N26-0261 (the “Second UD Action”), the Court rejected Defendant’s reliance on allegations concerning utility payments and CAM charges. The Court entered judgment in favor of Los Hermanos. Even if the Court is not persuaded by the procedural history of this case, Plaintiff maintains that the fees are unreasonable and must be reduced due to the time spent on the utility-fraud issues.

The Court notes that Plaintiff recovered unpaid rent in the amount of \$67,854.00, interest, cost of suit and attorney’s fees in a judgment signed by Hon. Julia Campins after trial on April 23, 2026 the Second UD Action. Plaintiff, there, is the prevailing party in the unlawful detainer lawsuit. A hearing on attorney’s fees is scheduled for September 24, 2026 in that matter. Plaintiff seeks to recover attorney’s fees in the amount of \$20,222.50. The Court takes judicial notice of the Judgment filed in the Second UD Action, along with the minutes of the trial.

Since the Parties have competing and potentially offsetting attorney’s fees request, the Court orders both counsels to meet and confer to discuss a global resolution. In light of this, the Court finds good cause to make the following orders:

Ruling

1. Defendant’s Motion is continued, *sua sponte*, to September 30, 2026 at 9:00 a.m.
2. Counsel are ordered to meet and confer to resolve the issue of competing attorney’s fees motions in these two cases.
3. No appearance is required at the hearing on June 17, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY BY DEFENDANT SKINSPIRIT ESSENTIAL, LLC**

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly’s Motion to Compel Further Responses to Discovery by Defendant Skinspirit Essential LLC is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. and other Defendants arising out of facial laser treatment. Plaintiff alleges that Defendant Skinspirit Essential LLC (“Skinspirit” or “Defendant”) performed a cosmetic Intense Pulse Light (“IPL”) Laser procedure on her face which was not consented to. Skinspirit denied using the IPL on Plaintiff’s face. Plaintiff seeks discovery to obtain electronic information from the IPL device what was alleged used on the date of

Plaintiff's procedure.

Plaintiff served Special Interrogatories Nos. 3, 4, 9 and 11 and Request for Production of Documents Nos. 4, 5 and 7, on Skinspirit on October 2, 2025. While Skinspirit served responses on November 25, 2025, Plaintiff claims that the responses are insufficient, filing this Motion to Compel Further Responses. The Motion is supported by Declaration of Counsel, Separate Statement, Memorandum of Points and Authorities and a Proposed Order.

Skinspirit filed a timely opposition on June 4, 2026 through Counsel Porter Scott. The opposition is supported by a separate statement, memorandum of points and authorities and declaration of Jihan El Saouda.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs' special interrogatories and request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. Defendant's objections on the grounds that these efforts amount to a "fishing expedition" are overruled.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be patently insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c).

Here, the record presented to the Court demonstrates that Counsel met and conferred only via written correspondence on the outstanding issues pertaining to the IPL laser device on November 26, 2025 and on January 16, 2026. The Court is not convinced that the Parties have fully complied with Section 2016.040, which requires counsel to talk in person, by telephone or video conference. Counsel are admonished that, for future discovery motions, this is a requirement. Exchanging “meet and confer” letters, while pervasive in the practice, is simply insufficient to comply with these statutory mandates.

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

After reviewing the motions, opposition papers, and applying the foregoing statutory and decisional authorities, the Court finds good cause to make the following rulings and orders.

Ruling

The Court makes the following rulings and orders:

1. Plaintiff’s Motion to Compel Further Responses to Interrogatories:

- No. 3. **Granted**. Defendant’s objections are overruled. However, defendant does not have to provide the model and serial number for the Lumines machine used for Plaintiff’s procedures again. Defendant is required to produce information about all other machines.
- No. 4. **Granted**. Defendant’s objections are overruled. Defendant does not have to provide the model and serial number for the Lumines machine used for Plaintiff’s procedures again. Defendant is required to produce information about all other machines.
- No. 9. **Granted**. Defendant’s objections are overruled.
- No. 11. **Granted**. Defendant’s objections are overruled.

2. Plaintiff’s Motion to Compel Further Responses to Request for Production of Documents:

- No. 4. **Granted**. Defendant’s objections are overruled.
- No. 5. **Granted**. Defendant’s objections are overruled.

- No. 7. **Granted**. Defendant's objections are overruled.
- 3. Further responses, including the documents responsive to the requests, are due no later than ten (10) days from the date of service of this order.
- 4. Plaintiff shall prepare and e-file a conforming order, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing and serve the order on Skinspirit.

18. 9:01 AM CASE NUMBER: C24-02649

CASE NAME: FRANCISCO PERLERA VS. FCS US, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTF'S REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: PERLERA, FRANCISCO MORLAES

TENTATIVE RULING:

Summary

Plaintiff Francisco Perlera's Motion to Compel Further Responses to Request for Production of Documents, Set One, served against Defendant FCA US, LLC is **denied**. Plaintiff's request for Sanctions is **denied**.

Background

Plaintiff Francisco Perlera ("Plaintiff") purchased a 2022 Ram 2500 vehicle (the "Subject Vehicle") manufactured by Defendant FCA US LLC ("Defendant" or "FCA") on September 30, 2021, and subsequently filed causes of action including violation of the Song-Beverly Act.

On July 3, 2024, Plaintiff served Requests for Production seeking documents relating to FCA's internal investigations, analysis, and knowledge of electrical and transmission defects in the Subject Vehicle and comparable vehicles. Plaintiff claims to streamline the Motion to Compel to focus on 28 specific requests most directly tied to liability and willfulness, identified as RFP Nos. 1, 2, 5, 6, 7, 14, 15, 16, 19, 20, 25, 27, 51, 52, 53, 54, 71, 72, 89, 90, 91, 104, 118, 119, 133, 134, 137, and 138. Defendant provided its Responses on April 17, 2025.

Plaintiff contends that FCA has responded by either limiting the scope of discovery to include only the Subject Vehicle, or by claiming an inability to comply based on boilerplate objections. Specifically, Plaintiff alleges FCA has raised objections on "overly broad" and "unduly burdensome" grounds, claimed that it neither "serviced nor sold" the Subject Vehicle, and asserted objections based on "vague and ambiguous" grounds attacking Plaintiff's definitions. Plaintiff asserts that Defendant has failed to provide Code-compliant responses and has not produced all responsive, nonprivileged documents, with responses containing boilerplate objections and refusals to produce documents often without justification.

Plaintiff claims FCA has failed to produce numerous categories of relevant documents, including internal investigation documents related to defects in the 2022 RAM 2500 Unlimited (including "accretion of knowledge" documents preceding decisions to issue TSBs, Recalls, and Campaigns), emails, field reports, and executive reviews regarding performance standards and failure rates, documents related to other consumers' warranty claims and complaints concerning the same defects, EPA and NHTSA communications (including Early Warning Reports, TREAD reports, CAIRs, CSNs, and consumer complaints), emails and ESI documentation, and executive reviews or PowerPoints.